

Anita Saxena vs Ajit Saxena on 24 June, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

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IN THE HIGH COURT OF DELHI AT NEW DELHI

MAT. APP.(F.C.) 87/2020 & CM 11897/2020& CM 11898/2020

ANITA SAXENA

..... Appellant

Through: Mr. Prashant Diwan, Advocate

with the appellant

versus

AJIT SAXENA

..... Respondent

Through: Ms. Sahiba Singh and Mr. Yash

Chaturvedi, Advocates with the respondent

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 24.06.2020 HEARD THROUGH VIDEO CONFERENCING

1. The present appeal is directed against an order dated 22.11.2019, passed by the learned Family Court disposing of an application moved by the appellant/wife under Section 24 of the Hindu Marriage Act for grant of pendent lite maintenance.

2. Under the impugned order, the learned Family Court has directed that the respondent/husband is liable to pay the appellant/wife a sum of Rs. 10,000/- per month towards maintenance. Pertinently, earlier hereto, the respondent/husband had agreed to pay a sum of Rs.8,500/- per month as maintenance to the appellant/wife in terms of a settlement arrived at between the parties before the National Lok Adalat and recorded in the proceedings on 08.07.2017, arising out of a petition filed by the appellant/wife under Section 125 Cr.PC. Under the impugned order, the Family Court has directed that over and above Rs. 8,500/- per month, the respondent/husband shall pay an additional sum of Rs.1,500/- per month to the appellant/wife, totalling a sum of Rs. 10,000/- per month. Besides this, the appellant has been awarded a sum of Rs.8,000/- towards part litigation expenses.

3. Aggrieved by the aforesaid order, the appellant/wife has filed the present appeal contending that the amount of monthly maintenance fixed by the Family Court is on a lower side and ought to be enhanced.

4. Notice was issued in the present appeal on 05.06.2020 and learned counsel for the appellant was directed to intimate the respondent/husband about filing of the present appeal and a direction was

issued to him to file replies to the interim applications within one week from the date of the order with advance copies to the other side.

5. Learned counsel for the appellant/wife states that he had duly intimated the directions passed in the order dated 05.06.2020, to the respondent/husband on 08.06.2020 along with a copy of the said order.

6. Ms. Sahiba Singh, Advocate appears along with the respondent and seeks more time to file a reply. We are not inclined to grant any further time when the respondent was well aware of the order passed on the last date of hearing and knew very well that he had to file replies to the interim applications within one week. Even if the time available to him is reckoned from 08.06.2020, the respondent had over two weeks to file the replies. On the last date, we had also directed the presence of the appellant and the respondent today for us to interact with them.

7. Both the parties are present today. We have enquired from the respondent/husband to indicate the amount that is due and payable by him to the appellant/wife in terms of the impugned order. Learned counsel for the appellant/wife states that a sum of Rs.1,45,000/- is outstanding towards maintenance. He further states that the respondent has not even paid the sum of Rs.8,000/- (awarded as litigation expenses), to the appellant.

8. Learned counsel for the respondent/husband admits that her client has been in default and seeks to explain that he had lost his job in March, 2020. Having regard to the submission made by learned counsel for the appellant/wife that the respondent/husband has been in gross default of payment of the maintenance for over one year and as in June, 2020 the arrears of maintenance had amounted to Rs. 1,45,000/- this explanation can not cut any ice. Quite obviously, the respondent/husband is trying to dilly-dally and is only buying time. The respondent is well aware of the fact that he has not complied with the conditions of settlement arrived at before the National Lok Adalat on 08.07.2017 as also the directions impugned order passed by the learned Family Court. To start with, the respondent/husband shall clear the arrears of maintenance payable to the appellant/wife at the earliest. He shall deposit a sum of Rs.1,00,000/- in the account of the appellant/wife within one week from today, through RTGS. The balance outstanding amount including maintenance payable for the month of July, 2020 shall be cleared on or before 15th July, 2020.

9. In the meantime, in the interest of justice, one more opportunity is granted to the respondent/husband to file replies to the interim applications within two weeks with copies to counsel for the appellant/wife who may file the rejoinders within two weeks thereafter.

10. At this stage, since the parties are present in the VC hearing we have enquired from them if they are ready and willing to negotiate a one time settlement with each other through mediation. Both the parties state that they are not averse to the said suggestion.

11. Accordingly, with the consent of the parties and without prejudice to their respective rights and contentions, they are directed to appear before the Mediator, to be appointed by the Delhi High Court Mediation and Conciliation Centre for mediation to be conducted through VC, on 30.06.2020

at 11 AM. The parties along with their respective counsel shall be present virtually before the Mediator on the said date. The learned Mediator shall have discussions with the parties and submit a report before the next date of hearing.

12. It is made clear that just because the parties have been referred to mediation, it will not be a ground for the respondent not to comply with the orders passed above. The maintenance, as directed, shall be paid in terms of the orders of the Court which includes payment of the future maintenance, on or before the 7th day of the calendar month.

13. List on 11th August, 2020, in the category of "Directions".

HIMA KOHLI, J SUBRAMONIUM PRASAD, J JUNE 24, 2020 hsk/mw